

**Justification Review Document
for an Exception to Fair Opportunity – FAR 16**

Program/Equipment: United States Army Human Resources Command (USAHRC) requests a Firm-Fixed Price contract for renewal of support for Fast Dump Restore (FDR)-FAST Software, and Abend-AID / File-AID, a file management tool used on Human Resource Command's (HRC) mainframe computers.

Authority: Federal Acquisition Regulation (FAR) 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

Amount: [REDACTED]

Prepared by:

[REDACTED]

[REDACTED]

Contracting Officer:

JoDeen M. Cuffe
Contracting Officer
Email: Jodeen.m.cuffe.civ@army.mil

TEAMS: 520-945-9194
Date:

Technical Representative:

[REDACTED]

[REDACTED]

Requirements Representative:

[REDACTED]

[REDACTED]

[REDACTED]
POC: JoDeen M. Cuffe, (502) 945-9194

**Justification for an Exception
to Fair Opportunity Under FAR 16**

1. Contracting Activity: U.S Army Mission and Installation Contracting Command Center (MICC) – Fort Knox, 199 6th Avenue, Suite 250, Fort Knox, KY 40121-5720.

2. Description of Action: U.S. Army Human Resources Command (USAHRC) requests a Firm-Fixed Price (FFP) contract for the renewal of support for File-AID, Abend-AID, FDREPORT, FDR-Renewal & FDRINSTANT MF Software. Period of coverage will be for six months, ending on 29 September 2025. This period of renewal will align this group of software's renewal dates with the other group of software for a combined renewal, reducing annual paperwork. This action is a follow-on contract to W9124D24F0174. The Government projects award for 1 April 2025 and Fiscal Year 2025 Operation and Maintenance Army (OMA) funds will be used. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)B).

3. Description of Supplies/Services: This procurement will provide software support for USAHRC through the renewal of File-AID, Abend-AID, FDREPORT, FDR-Renewal & FDRINSTANT MF SW. Abend-AID assists in powerful fault analysis and diagnosis features leading Systems Administrators (SA) directly to the information they need to resolve faults and abnormal ends. File-AID's editor is used to browse, edit, allocate, compare, copy, delete, and print files of any standard Multiple Virtual Storage (MVS) access method. FDR/Compactor CPK and FDRINSTANT provides the non-disruptive defragmentation & volume maintenance required by operating system z/OS for the best performance on all current RAID/Cache based storage systems. In addition, it consolidates free space on volumes, merging multi-extent data sets into a single extent, while releasing unused space on International Business Machines (IBM®) DS8000 series storage, as well as disk storage from other vendors attached to IBM System z® mainframes.

CLIN	PART NUMBER	DESCRIPTION	QTY
1	LPSQB	BMC AMI DevX Abend-AID for CICS - Renewal	1 Each (627 MIPS)
2	LPJRB	BMC AMI DevX File-AID/MVS - Renewal	1 Each (627 MIPS)
3	LPYQB	BMI AMI Storage FDREPORT - renewal	1 Each (627 MIPS)
4	LPFTB	BMC AMI Storage FDRFSH - Renewal	1 Each (627 MIPS)
5	LPDTB	BMI AMI Storage FDR - Renewal	1 Each (627 MIPS)

Period of Coverage: 1 April 2025 through 29 September 2025.

Total Value: [REDACTED]

4. Authority Cited: FAR 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

5. Reason for Authority Cited: This is a renewal for support for Fast Dump Restore (FDR-FAST) Software, and Abend-AID / File-AID, proprietary software products of BMC Software, Incorporated. Software cannot be substituted with any other Original Equipment Manufacturer (OEM) software solution as detailed below without jeopardizing compatibility issues with the mainframe and support for other mission essential systems and projects. HRC owns a perpetual license for the listed software titles, so the requested action is for continuing support and upgrades. No other applications can be integrated into the current framework as the required subscription is proprietary in nature. Any change will require purchase of new software in addition to continuing support, as well as other expenses for training and rewriting of batch jobs and applications, the extent of which the mainframe team cannot quantify as we have no control over customer use of these tools.

Specifically, File-AID and Abend-AID, are used by both Systems Administrators and mainframe clients, with program calls embedded into batch processes and applications. While IBM does have a program like File-AID called File Manager, it lacks much of the capability. An analogy would be trying to use WordPad to replace Word for office documentation. While both are word processors, they are not in the same capability class. Both OEMS Branch and Systems Integration Branch use these programs for Production On-call support as well as for research, impact analysis, design, unit, and development testing.

Additionally, beyond embedded parts, there could be an impact directly or indirectly upon any Program, Subroutine, Batch Job, Procurement, File design, etc. of these and other mainframe clients.

Storage FDREPORT, is used to produce on-demand DASD/Tape reports. While this can be done via IBM software, it would require more time to set up and use, resulting in a loss of automation efficiency.

Storage FDRFSH INSTANT, enhances the Fast Dump Restore (FDR, FDRDSF, FDRCOPY) line of products to provide the ability to take backups that are frozen at a

given point of time, like a virtual machine snapshot. As this works specifically with Storage FDR, there is no alternative product.

Storage FDR, provides full-volume backup and restore capability, as well as full-volume DASD-to-DASD copies

6. Actions to Increase Competition: There is an ongoing effort to fully automate administrative tasks, thus reducing the total cost of ownership. Products offering a similar high degree of automation capabilities utilizing the latest technologies are periodically considered for implementation. Accordingly, the HRC mainframe team will continue to monitor advancements in commercially available information technology products and services, particularly those listed within existing enterprise-related contracts under the Army CHES Program and the DOD ESI agreements. When a competing product becomes available in the marketplace, a cost analysis will be completed to determine if switching to a new storage management software is cost effective.

7. Market Research: In accordance with Army Federal Acquisition Regulation Supplement (AFARS) 5139, Computer Hardware Enterprise Software and Solutions (CHES) is the mandatory source for commercial Information Technology (IT) hardware and software. HRC issued a request for quote for market research purposes on CHES 19 November 2024 with zero response received 26 November 2024 indicated that the requirement is not available from any CHES suite of contracts, therefore, a CHES Statement of Non-Availability (SONA) number 216812867 and an IT Approval System Waiver (ITAS) number 20241119256851 was submitted and is pending approval.

8. Other Facts:

a. Procurement history.

(1) Contract: NNG15SC82B, W9124D24F0174

Contractor: New Tech Solutions, Inc

Award Amount: \$89,899.26

Period of Coverage: 1 April 2024 through 31 March 2025

Competitive Status: Unrestricted

Prior justification was for brand name product like that herein.

Authority: FAR 16.505(a)(4)

(2) Contract: W52P1J20D0051/W9124D23F0242

Contractor: FEDBIZ IT Solutions LLC.

Award Amount: \$75,653.82

Period of Coverage: 22 May 2024 through 31 March 2024

Competitive Status: Brand Name

Authority: FAR 16.505(a)(4)

(3) Contract: NNG15SC73B/W9124D22F0154

Contractor: Four, Inc.

Award Amount: \$77,484.66

Period of Coverage: 1 April 2022 through 31 March 2023

Competitive Status: Brand Name

Authority: FAR 8.405-6(a)(1)(i)(B) and 8.405-6(b)(1)

9. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]
Date: See digital signature

10. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]
Date: See digital signature

11. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

[REDACTED]
Date: See digital signature

JoDeen M. Cuffe
Contracting Officer

12. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED]

JoDeen M. Cuffe
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of File-AID and Abend-AID, FDR-FAST Software Renewal for USAHRC, using an exception to fair opportunity pursuant to the authority of FAR 16.505(a)(4)-Restricting consideration to an item peculiar to one manufacturer. The estimated value of the contract is [REDACTED] for a period of coverage commencing through. The approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

[REDACTED] Date: See digital signature

JoDeen M. Cuffe

Contracting Officer